It is further concluded that the provisional approval of applicant as a marketing agency, heretofore granted by Order of the Director, dated May 27, 1941, not be withdrawn and that the revocation of said Order be extended for a period of six months from June 22, 1942, subject to all the applicable conditions set forth in the earlier orders issued in this proceeding.

It is further concluded that the Supplemental Motion of Applicant should be granted to the extent set forth above and in all other respects should be denied.

And it is so ordered.

Dated: June 26, 1942.

[SEAL] DAN H. WHEELER,
Acting Director.

[F. R. Doc. 42-6076; Filed, June 29, 1942; 11:11 a. m.]

[Docket No. B-37]

J. BRUNER

CEASE AND DESIST ORDER

Order approving and adopting the proposed findings of fact, proposed conclusions of law and recommendations of the Examiner and cease and desist order.

A complaint pursuant to sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937 having been filed with the Bituminous Coal Division on September 6, 1941, by the Bituminous Coal Producers Board for District No. 9 alleging that J. Bruner, a code member in District No. 9 has violated the provisions of the Bituminous Coal Code or rules and regulations thereunder and praying that the Division cancel or revoke the code membership of said J. Bruner;

A hearing having been held before Charles S. Mitchell, a duly designated Examiner of the Division at a hearing room thereof in Owensboro, Kentucky, on November 26, 1941;

The Examiner having made and entered his Report, Proposed Findings of Fact, Proposed Conclusions of Law and Recommendation in the matter, dated May 6, 1942, in which it was found that code member wilfully violated the effective minimum prices with respect to two tons of 1½" screenings sold to Bob Allgood and Paul Barker and that said sales constituted a violation of section 4 II (e) of the Bituminous Coal Act which in part provides that "no coal . . . shall be sold or delivered or offered for sale at a price below the minimum" established by the Division and that while certain extenuating circumstances did not discharge code member from the obligation to observe the requirements of the Code and rules and regulations promulgated by the Division, he believed under the circumstances that a cease and desist order was appropriate; and

The Examiner having recommended that an order be entered directing the code member to cease and desist from violating the Act, the schedule of effective minimum prices and from otherwise violating the rules and regulations of the Division;

An opportunity having been afforded to all parties to file exceptions thereto and supporting briefs and no such exceptions or supporting briefs having been filed;

The undersigned having determined after consideration of the record that the proposed findings of fact and proposed conclusions of law of the Examiner should be approved and adopted as the findings of fact and conclusions of law of the undersigned;

Now, therefore, it is ordered, That the proposed findings of fact and proposed conclusions of law of the Examiner be and the same are hereby approved and adopted as the findings of fact and conclusions of law of the undersigned;

It is further ordered, That the code member, J. Bruner, his representatives, agents, employees, attorneys and successors or assigns and all persons acting or claiming to act in his behalf or interest cease and desist and they are hereby permanently enjoined and restrained from selling coal below the prescribed minimum price therefor and from violating the Bituminous Coal Act, the Schedule of Effective Minimum Prices for District No. 9 for Truck Shipment, the Bituminous Coal Code and the rules and regulations thereunder.

It is further ordered, That the Division may upon failure of the code member herein to comply with this order forthwith apply to the Circuit Court of Appeals of the United States within any circuit where the code member carries on business for the enforcement thereof or take any other appropriate action.

Dated June 26, 1942.

[SEAL] DAN H. WHEELER,
Acting Director.

[F. R. Doc. 42-6073; Filed, June 29, 1942; 11:11 a. m.]

General Land Office.

[Public Land Order 1]

CALIFORNIA

ORDER WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT

FOR CAMP SITE AND MANEUVER PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9146[1] of April 24, 1942, it is ordered as follows:

The public lands in the following-described areas are hereby withdrawn, subject to valid existing rights, from all forms of appropriation under the public-land laws, including the mining laws, and reserved for the use of the War Department for camp sites and maneuver purposes:

SAN BERNARDINO MERIDIAN

T. 6 S., R. 10 E.,
Secs. 8, 14, 18, 20, 22, 24;
T. 6 S., R. 11 E.,
Sec. 14;
Sec. 18, Lots 1 to 12, inclusive, SE¼;
Secs. 20, 22, 24;
T. 6 S., R. 12 E.,
Secs. 18, 20, 22, 28, 30;
T. 5 S., R. 15 E.,
Sec. 2, Lots 1 and 2 of NW¼, SW¼;
Secs. 3 to 10, inclusive;
Sec. 11, N½, SW¼;
Sec. 15, N½;
Secs. 17 and 18;
Sec. 19, Lots 1 and 2 of NW¼, E½;
Secs. 20, 21, 28, 29, 30, 32, 34, 35, partly unsurveyed;
T. 1 S., R. 17 E.,
Secs. 6, 7, 13, 14, 18, 19, 20, partly unsurveyed;
Sec. 29, N½, SW¼;
Secs. 30, 31;
Sec. 32, W½NW¼;
T. 2 S., R. 18 E.,
Secs. 1 to 12, inclusive, partly unsurveyed;
T. 1 N., R. 18 E.,
Secs. 1 to 18, inclusive, 21 to 28, inclusive, 33 to 36, inclusive, unsurveyed;
T. 7 N., R. 22 E., All;
T. 8 N., R. 22 E.,
Secs. 3, 4, 7 to 10, inclusive, 13 to 36, inclusive;
T. 7 N., R. 23 E.,
Secs. 5 to 8, inclusive, 17 to 20, inclusive, 30, 31;
T. 9 N., R. 23 E.,
Sec. 31;
Sec. 32, S½.

The areas described, including both public and nonpublic lands, aggregate 105,901.27 acres.

This order shall be subject to (1) the Executive Order of May 17, 1927 withdrawing certain lands for a proposed water conduit, and (2) Power Site Classification No. 55 approved by the Secretary of the Interior June 22, 1923, so far as such orders affect any of the lands described herein.

This order shall take precedence over, but shall not rescind or revoke (1) the Executive Order of April 17, 1926 creating Public Water Reserve No. 107, (2) Executive Order No. 5902 of August 18, 1932 creating Public Water Reserve No. 145, (3) Executive Order No. 6361 of October 25, 1933 withdrawing certain lands for classification and pending determination of the advisability of reserving lands for national monument purposes, and (4) Executive Order No. 6910 of November 26, 1934, as amended, withdrawing public lands in California and other states for classification and other purposes, so far as such orders affect any of the lands described herein.

It is intended that the lands described herein shall be returned to the administration of the Department of the Interior when they are no longer needed for the purposes for which they are reserved.

[SEAL] E. K. BURLEW,
Acting Secretary of the Interior.

JUNE 20, 1942.

[F. R. Doc. 42-6029; Filed, June 27, 1942; 10:30 a. m.]

[Public Land Order 3]

CALIFORNIA

ORDER WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT

FOR USE AS SOURCES OF SAND, WATER, ETC., SUPPLY FOR SIERRA ORDNANCE DEPOT

By virtue of the authority vested in the President and pursuant to Executive Or-

[1] 7 F.R. 3067.